

**RESOLUTION AUTHORIZING THE FILING OF AN ORIGINAL COMPLAINT  
AGAINST THE VALUATION OF REAL PROPERTY PURSUANT TO OHIO REVISED  
CODE SECTION 5715.19 – PERMANENT PARCEL NUMBER 583-21-007**

The Board of Education of the Brecksville-Broadview Heights City School District (“Board”), Cuyahoga County, met in regular session this 20<sup>th</sup> day of March, 2024, with the following members present:

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\_\_\_\_\_ moved and \_\_\_\_\_ seconded the adoption of the following resolution:

**WHEREAS**, in relation to tax year 2023, Ohio Revised Code Section 5715.19(A) permits a board of education to file an original complaint with the County Auditor challenging the determination of the total valuation or assessment of property it does not own or lease if the property was sold in an arms’ length transaction before the tax lien date for tax year 2023, and the sale price exceeds the true value of the property for tax year 2023 by both ten percent and \$535,000, the adjusted threshold set by the Ohio Tax Commissioner for tax year 2023 pursuant to Ohio Revised Code Section 5715.19(J); and

**WHEREAS**, prior to filing an original complaint, a board of education is required to first adopt a resolution authorizing the filing at a public meeting, which resolution shall include: (a) the identification of the parcel(s) that are the subject of the original complaint by street address and by permanent parcel number, (b) the name of at least one of the record owners of the parcel(s), (c) the basis for the complaint under divisions (A)(1)(a) to (f) of Ohio Revised Code Section 5715.19(A) relative to each parcel identified in the resolution, and (d) the tax year for which the complaint will be filed; and

**WHEREAS**, before adopting a resolution, Ohio Revised Code Section 5715.19(A)(7) provides that a board of education shall mail a written notice to at least one of the record owners of the parcel(s) identified in the resolution stating its intent in adopting the resolution, the proposed date of adoption, and the basis for the complaint under divisions (A)(1)(a) to (f) of Ohio Revised Code Section 5715.19(A) relative to each parcel identified in the resolution. Such notice must be sent by certified mail to the last known tax-mailing address of at least one of the record owners and, if different from the tax-mailing address, to the street address of the parcel(s) identified in the

resolution. The notice shall be sent and postmarked at least seven calendar days before the board of education adopts the resolution.

**NOW, THEREFORE, BE IT RESOLVED**, by the Board of Education of the Brecksville-Broadview Heights City School District that the following property qualifies for an original complaint in relation to tax year 2023 as it sold in an arms' length transaction, according to the Cuyahoga County Records, for \$1,150,000 on September 13, 2022, and Cuyahoga County's tax year 2023 value for the property is \$339,000:

| Street Address                                            | Permanent Parcel Number | Name of Record Owner               | Basis for the Complaint                                                                             | Tax Year of Filing |
|-----------------------------------------------------------|-------------------------|------------------------------------|-----------------------------------------------------------------------------------------------------|--------------------|
| Treeworth (Rear) Blvd.,<br>Broadview Heights, OH<br>44147 | 583-21-007              | 5025 Broadview<br>Heights Land LLC | 5715.19(A)(1)(d):<br>Recent sale of<br>subject property<br>accurately reflects<br>fair market value | 2023               |

**BE IT FURTHER RESOLVED**, that the Board has provided written notice to at least one of the record owners of the parcel identified herein in accordance with the statutory requirements.

**BE IT FURTHER RESOLVED**, that the Board desires to proceed with the filing of an original complaint for the property described in this resolution for tax year 2023 based on Ohio Revised Code Section 5715.19(A)(1)(d) and the recent sale of that property and authorizes its legal counsel, Fisher Phillips LLP, to file said complaint with the Cuyahoga County Auditor thereby initiating proceedings with the Cuyahoga County Board of Revision and to take any action necessary to prosecute and/or defend the complaint, including, but not limited to, participating in the Board of Revision proceedings and any further appeal.

**BE IT FURTHER RESOLVED**, that it is hereby found and determined that all formal actions of the Board concerning and relating to the adoption of this Resolution were adopted in an open meeting of the Board and that all deliberations of the Board and any of its committees that resulted in such formal action were open to the public when required by law, in full compliance with the law.

**UPON ROLL CALL**, on passage of the foregoing resolution, the vote was as follows:

|       | <u>Yea</u> | <u>Nay</u> |
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| _____ | _____      | _____      |
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### **TREASURER'S CERTIFICATION**

The above is a true and correct extract from the minutes of the regular meeting of the Board of Education of Brecksville-Broadview Heights City School District, Ohio, held on March 20, 2024, commencing at 6:00 p.m., at the Board of Education Center, 6638 Mill Road, Brecksville, Ohio, 44141 showing the adoption of the Resolution set forth above.

Dated: March 20,  
2024

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Treasurer, Board of Education  
Brecksville-Broadview Heights City School District,  
Ohio